

26TRCV00519 26TRCV00519

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-02

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Case Number: 26TRCV00519 Hearing Date: September 2, 2026 Dept: P

Demurrer to Plaintiff's Complaint

Moving Party: Defendant EAN Holdings, LLC

Responding Party: None

RULING

The court considered the moving papers. Defendant's Demurrer to Plaintiff's complaint is SUSTAINED with leave to amend.

PROCEDURAL BACKGROUND

On February 10, 2026, Plaintiff May Thinzar Latt ("Plaintiff") filed a complaint against Defendant EAN Holdings LLC ("Defendant") and DOES 1 through 25, inclusive, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On July 16, 2026, Defendant filed the instant demurrer. On August 25, 2026, Defendant filed a Notice of Non-Opposition.

FACTUAL BACKGROUND

Plaintiff alleges that on February 17, 2025, a motor vehicle collision occurred at Van Ness Avenue and 132nd Street in Gardena, California. (Complaint, p. 4.) Plaintiff alleges that Defendant negligently owned, operated, entrusted, and/or drove a motor vehicle, causing Plaintiff to sustain injuries. (Complaint, p. 5.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot

reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Defendant demurs to both causes of action in Plaintiff's complaint on the grounds that it contains only conclusory, boilerplate allegations without sufficient supporting factual allegations. Here, Defendant argues that Plaintiff has not adequately pled negligent entrustment against Defendant because Plaintiff has not alleged that Defendant failed to inspect the driver's license at the time of rental or that the license was not facially valid. Defendant further argues that the Graves Amendment applies here and bars Plaintiff from holding Defendant liable, because Defendant is engaged in the business of renting and leasing motor vehicles.

Request for Judicial Notice

Defendant requests that the court take judicial notice of the following records: (1) a copy of the most recent Statement of Information for Defendant, filed with the California Secretary of State; and (2) a copy of the most recent Statement of Information for Enterprise Rent-A-Car Company of Los Angeles, LLC, filed with the California Secretary of State. Defendant states that the Statements of Information indicate that Defendant is in the business and renting and/or leasing motor vehicles.

The court may take notice of official acts of the State of California, pursuant to Evidence Code Section 452(c). Therefore, the court GRANTS Defendant's request for judicial notice of the Statements of Information.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Defendant's counsel declares that he met and conferred with Plaintiff's counsel on July 13, 2026, and sent Plaintiff's counsel a letter "explaining the legal and factual grounds to dismiss [Defendant]." (Miller Decl., ¶ 8.) Defendant's counsel declares that he has not received a response to the letter. (Miller Decl., ¶ 8.)

Because Defendant's counsel has not specified whether the parties have met in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been met. However, the court will still discuss the merits of Defendant's demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. The Graves Amendment

Defendant demurs to Plaintiff's complaint on the grounds that both of Plaintiff's causes of action are barred by the Graves Amendment.

The Graves Amendment is set forth at 49 USC Section 30106 and provides:

"(a) In General. - An owner of a motor vehicle that rents or leases the vehicle to a person (or an affiliate of the owner) shall not be liable under the law of any State or political subdivision thereof, by reason of being the owner of the vehicle (or an affiliate of the owner), for harm to persons or property that results or arises out of the use, operation, or possession of the vehicle during the period of the rental or lease, if

(1) the owner (or an affiliate of the owner) is engaged in the trade or business of renting or leasing motor vehicles; and

(2) there is no negligence or criminal wrongdoing on the part of the owner (or an affiliate of the owner)."

Here, Plaintiff alleges that "Defendant(s) so negligently owned, operated, entrusted and/or drove a motor vehicle so as to cause injuries and damages to Plaintiff." (Complaint, p. 5.) The court has taken judicial notice of Defendant's Statement of Information which indicates that Defendant is in the business of renting motor vehicles. Therefore, the court finds that the Graves Amendment applies and bars Defendant's liability.

Accordingly, Defendant's Demurrer is SUSTAINED.

C. Sufficiency of the Allegations

Additionally, Defendant argues that both of Plaintiff's causes of action fail because Plaintiff's complaint contains only conclusory, boilerplate allegations, and the court agrees.

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Under the theory of negligent entrustment, liability is imposed on the vehicle owner or permitter because of the owner's independent negligence and not the negligence of the driver. (Safeco Ins. Co. v. Gilstrap (1983) 141 Cal.App.3d 524, 530.) A person who places or entrusts his motor vehicle in the hands of another "whom he knows, or from circumstances is charged with knowing, is incompetent or unfit to drive, may be held liable for an injury inflicted by the use made thereof by that driver, provided the plaintiff can establish that the injury complained of was proximately caused by the driver's disqualification, incompetency, inexperience or recklessness." (Flores v. Enterprise Rent-A-Car Co. (2010) 188 Cal.App.4th 1055, 1063.)

Here, Plaintiff alleges that "Defendant(s) so negligently owned, operated, entrusted and/or drove a motor vehicle so as to cause injuries and damages to Plaintiff." (Complaint, p. 5.) Plaintiff alleges that Defendant, specifically, operated a motor vehicle and employed the persons who operated a motor vehicle in the course of their employment. (Complaint, p. 4.) To the extent that Plaintiff attempts to plead negligent entrustment against Defendant, the court finds that Plaintiff has not alleged any facts showing that the Doe Defendants were unfit drivers or that Defendant should have known of their unfitness before entrusting them with the motor vehicle.

Therefore, the court finds that Plaintiff has failed to allege sufficient facts to state causes of action for Motor Vehicle and General Negligence against Defendant.

Accordingly, Defendant's Demurrer is SUSTAINED.

D. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.").) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Here, the court finds that it is reasonably possible for Plaintiff to cure the defects in her complaint by incorporating additional factual allegations. The court also notes that this is the first challenge to Plaintiff's operative pleading.

Therefore, the court GRANTS Plaintiff leave to amend her complaint.

CONCLUSION

Based on the foregoing, Defendant's Demurrer is SUSTAINED with leave to amend.

Plaintiff is to file and serve any amended pleading within 30 days. Moving party is ordered to give notice of ruling.